

S3 Drugs And Magic Remedies Act

Title: Prohibition of Advertisement of Magic Remedies for Certain Diseases and Disorders

Jurisdiction: India

Category: Advertising

Source Citation: Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954, Section 5

Plain English Summary:

Magic remedy च्या advertisement मध्ये Section 3 मध्ये नमूद केलेल्या उद्देशांसाठी miraculous किंवा effective असल्याचा दावा करता येत नाही. Traditional किंवा Ayurvedic product ला जादुई उपचार किंवा चमत्कारी परिणाम देणारे म्हणून promote करणे प्रतिबंधित आहे.

The Exact Legal Text:

No person carrying on or purporting to carry on the profession of administering magic remedies shall take any part in the publication of any advertisement referring to any magic remedy which directly or indirectly claims to be efficacious for any of the purposes specified in Sec.3.

Keywords/Triggers:

magic remedy advertisement, miraculous treatment, magical cure, prohibited remedy claim, traditional medicine advertisement, Section 3 purposes, DMROA Section 5

Title: Penalty for Contravention of the Drugs and Magic Remedies Act

Jurisdiction: India

Category: Advertising

Source Citation: Drugs and Magic Remedies (Objectionable Advertisements) Act, 1954, Section 7

Plain English Summary:

या Act किंवा त्याअंतर्गत बनवलेल्या Rules चे उल्लंघन केल्यास शिक्षा होऊ शकते. First conviction साठी सहा महिन्यांपर्यंत imprisonment, fine किंवा दोन्ही होऊ शकतात. Subsequent conviction साठी एक वर्षांपर्यंत imprisonment, fine किंवा दोन्ही होऊ शकतात.

The Exact Legal Text:

Whoever contravenes the provisions of this Act or the rules made there under shall, on conviction, be punishable—

(a) in the case of first conviction, with imprisonment which may extend to six months, or with fine, or with both;

(b) in the case of subsequent conviction, with imprisonment which may extend to one year, or with fine, or both.

Keywords/Triggers:

DMROA penalty, first conviction, subsequent conviction, advertising offence, imprisonment, fine, legal compliance, Section 7